

and FCA for the reasons stated. There is an arguable conflict between the allegations in paragraphs 9 and 11 of the FAC (and the warranty attached as Exhibit A to the FAC, which on its face bears no indication of any direct dealing between Plaintiffs and FCA rather than the written warranty merely accompanying the vehicle). The FAC does not include factual allegations regarding the dealership's agency relationship found sufficient in *Dhital* or the involvement of FCA in retail sales and its profiting from those sales as in *Bader*. Other allegations by Plaintiffs in support of this cause of action are similarly generic and vague, even as to facts that should be within their own knowledge and that may well not be known to FCA, including the "sales representatives" Plaintiffs conferred with before buying the vehicle (FAC ¶¶ 12, 83), and the "marketing and advertising materials" and "materials disseminated by FCA concerning FCA Vehicles" Plaintiffs allegedly reviewed before they purchased the car. (FAC ¶¶ 12, 83.) Plaintiffs may be able to allege those specific facts, but the FAC does not do so.

On these grounds, the demurrer to the sixth cause of action is **sustained, with leave to amend**.

9. 9:00 AM CASE NUMBER: C24-03170

CASE NAME: MARIE DUFFY VS. FCA US, LLC.

*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 1ST AMENDED COMPLAINT
FILED BY: FCA US, LLC.

TENTATIVE RULING:

Before the Court is a motion by FCA US, LLC to strike Plaintiffs' first amended complaint. For the reasons set forth, the motion is **granted, with leave to amend**. Paragraph f of the Prayer for Relief of the first amended complaint is stricken, subject to Plaintiffs' right to amend pursuant to this ruling and the concurrent ruling on the FCA demurrer.

Background

The relevant factual background is set forth in the Court's concurrent ruling on FCA's demurrer to the first amended complaint ("FAC").

Legal Standards for Striking Punitive Damages and Analysis

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Under Civil Code section 3294, "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. (Civ. Code § 3294(a).) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Alleging an intentional tort alone is not enough to support a claim for

punitive damages, nor are conclusory allegations that merely parrot the language of the statute. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166; *Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963.)

Fraud, oppression and malice necessary to support punitive damages are each defined in Civil Code section 3294(c). The Court has concluded the allegations of the sixth cause of action of the FAC are insufficient to state the claim for fraudulent inducement/fraudulent concealment.

The definition of "malice" under Civil Code section 3294(c)(1) was amended in 1987 and is now defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Emphasis added.) (*See also generally Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159-1160 [explaining the "malice requirement has evolved over time"].) The definition of "oppression" also requires "despicable" conduct. (Civ. Code § 3294(c)(2).

The California Supreme Court explained that "the statute's reference to 'despicable' conduct seems to represent a new substantive limitation on punitive damage awards. Used in its ordinary sense, the adjective 'despicable' is a powerful term that refers to circumstances that are 'base,' 'vile,' or 'contemptible.'" [Citation omitted.] As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests. The additional component of 'despicable conduct' must be found. [Citations omitted.]" (*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725 [emphasis added]). (*See also Lackner v. North* (2006) 135 Cal.App.4th 1188, 1209-1210 [" 'Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate.' [Citation.]"].)

Plaintiffs do not contend that the FAC alleges FCA intended to harm or injure Plaintiffs. They cite *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217 for the proposition that "Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences." (*Id.* at 1228.) Following the *College Hospital* decision cited above, the Court in *Angie M.* also held that based on the 1987 amendment to the punitive damages statute, "the statute now requires 'despicable' conduct *in addition to* willful and conscious disregard for a plaintiff's interests. [Citation omitted.]" (*Id.* at 1228.) The Court held the allegations in that case, which stated a claim for unlawful seduction/sexual abuse of a minor in addition to battery, were sufficient to state a claim for punitive damages under the amended definition of malice. (*Id.*)

Plaintiffs make general arguments that punitive damages may be a remedy available for violation of the Song-Beverly Consumer Warranty Act and the Magnuson-Moss Warranty Act. The theoretical availability of punitive damages does not mean that Plaintiffs have alleged facts in the FAC that show malice or oppression as defined in Civil Code section 3294 and construed in the case law to state a claim for punitive damages. The Court does not find the allegations of the FAC sufficient to state a claim for punitive damages based on malice or oppression. The allegations do not rise to the level of "despicable" conduct.